CORAM: HER HONOUR HALIMAH EL-ALAWA ABDUL BAASIT (MRS), JUDGE, SITTING AT THE CIRCUIT COURT, DANSOMAN-ACCRA ON THE 16TH DAY OF JULY, 2025.

SUIT NO. CCD/CC6/06/24

THE REPUBLIC

VRS

FRANCIS AMISSAH

Accused Person present.

Chief Inspector Christopher Wonder Afeke for the Prosecution present.

Gloria Asante Antwi Esq. holding the brief of Phillip Narh Esq. for Accused Person present.

JUDGMENT

Background:

1. The Accused Person was charged with the offence of Defilement: Contrary to Section 101(2) of the **Criminal Offences Act, 1960 (Act 29)**. No 7357 Dpw/Cpl Nana Adjoa Bondziewa Eshun, the Investigator herein narrated the facts as follows; the Complainant Mary Kontoh is a Business woman and an Auntie of the victim and reside at Lapaz Community. The victim aged Fourteen (14) years lives with her biological mother at Mataheko Pharmacy whilst, the Accused Person, Thirty-Nine (39) years is a taxi driver and also lives in the same area with the victim and her mother. The victim usually spends the weekend with the Complainant at Lapaz

community. On the 28th October 2023, the victim woke up in the morning, and was struggling to sit, and also looked very weak.

2. The Complainant interrogated the victim and she told her that the Accused Person has been taking her in his red car any time she is playing with her friends in the area to a certain place at Mataheko, put some white substance into a coke, gave it to her to drink and he had sex with her. That the Accused Person, after the act, gives her GH¢2.00 and threatened her never to tell anybody else she will die. A complaint was lodged with the Domestic Violence and Victim Support Unit (DOVVSU) of the Ghana Police Service at Odorkor leading to the arrest of the Accused Person. Upon interrogation of the Accused Person, he denied having sexual intercourse with the victim. A Police Medical Form was issued to the Complainant to send the victim to the hospital for treatment and examination. The Accused Person after investigations was charged with the offence and arraigned before Court.

The Plea

3. On the 8/11/2023, the Accused Person, pleaded not guilty to the offence levelled against him after same was read and explained to him in the Twi Language. Having pleaded not guilty, the burden now lies on the Prosecution to adduce enough evidence to establish beyond reasonable doubt that the Accused Person indeed committed the offences he has been charged with. Article 19(2) (c) of the Constitution 1992 provides that *'a person charged with a criminal offence shall be presumed innocent until he is proved or has pleaded guilty'*. Thus, throughout a criminal trial, the burden of proving the guilt of the Accused Person remains on the Prosecution. (See **Asante vs. The Republic** (1972) 2 GLR 177).

Evidence of Prosecution

4. To prove its case, Prosecution called Four (4) Witnesses to testify and tendered in the following as Exhibits;
   i. Exhibit 'A' - Complainant's Statement at the Police Station and dated 29/10/2023.
   ii. Exhibit 'B' - Victim's Statement at the Police and dated 29/10/2023.
   iii. Exhibit 'C' – biodata page of the Weighing Card of the Victim.
   iv. Exhibit 'D' - Medical Form issued by the Police to the victim.
   v. Exhibit 'E' - Caution Statement of the Accused Person dated 1/11/2023.
   vi. Exhibit 'F' - Charge Statement of the Accused Person dated 2/11/2023.

Testimony of Prosecution Witnesses

5. The first Prosecution Witness (PW1) to testify was the victim herein who gave her name as Michelle Koko Narh who lives with her parents at Mataheko, pharmacy. She stated that she is Fourteen (14) years old, a Pupil and currently in Basic 6. She testified further by identifying the Accused Person as someone she calls Uncle and they live in the same are. She added that whenever she closes from school, the Accused Person calls her, open his car and ask her to sit in it. She further stated that the Accused Person takes her to a particular area of the school, buys her a drink, puts a white substance in the drink for her to drink; after which she loses consciousness and is raped by the Accused Person Five [5] times. She testified again that she failed to inform your parents because she was afraid but added that before the act, the Accused Person gives her Ghc2.00 to buy biscuit.

6. The second Prosecution Witness (PW2) is Mary Kontoh who testified that her sister's daughter, the victim herein spends some days at her house from the 27th October, 2023. She added that one morning, they woke up to see that the victim's

lips were unusually dark and when they confronted her, the victim informed them that uncle had been beating her. Upon further interrogation, the victim explained to her that there is a man in the neighborhood who had been taking her to a place near her school in his red car. PW2 testified further by stating that the victim disclosed to her that when they get there, the Accused Person will then lace her drink with a white substance which makes her sleep off. The Accused Person would then have sex with her and beat her to wake up. The matter was then reported to Odorkor Police Station and the Accused Person was arrested.

7. The third Prosecution Witness (PW3) is the case Investigator, PW/CPL Nana Adjoa Bondziewa Eshun stationed at Odorkor Divisional DOVVSU. She testified that on the 29th October 2023, PW1 made a report that on the 28/10/2023, she detected that the victim looked pale and was sitting with difficulty. Upon interrogation, the victim told her that a man in their area at Mataheko Pharmacy has been having sex with her. PW3 testified further that the case was then referred to her of which a Police Medical Form was issued. On the 1/11/2023, she received an endorsed Police Medical Form from the Dansoman Poly Clinic and it was confirmed that the victim's hymen was broken. The Accused Person was then arrested and charged with the offence of Defilement

8. The fourth Prosecution Witness (PW4) was the Medical Officer and was subpoenaed by the Court to testify. Portions of his testimony will be produced in subsequent paragraphs.

<u>The Defence of the Accused Person</u>

9. As such, at the close of the case of the Prosecution, Counsel for the Accused Person filed a Submission of No Case but same was dismissed and the Accused Person was ordered to open his defence in accordance with Section 174 of the **Criminal and Other Offences (Procedure) Act, 1960, (Act 30).** Consequently, , the Accused Person elected to testify on oath by filing a Witness Statement on the 21/05/25 wherein he testified that he is a taxi driver and currently lives at Amasaman although he lived at Mataheko for about Twenty-Three (23) years. Accused Person testified again that he knows the victim and her mother as neighbours who lived opposite where he lived at Mataheko. He added that he had a cordial relationship with the mother of the victim and even expressed interest in her which she turned down but their relationship still remained cordial. Accused Person testified further that he later found out that the victim's mother was going out with an old taxi driver after turning down his proposal and he started mocking her about her choice of men. This infuriated the victim's mother and for about two years, each did not speak to the other.

10. He added that one morning, whilst eating and hanging out with some friends in a shop close to the victim's house, the victim came out of the house and he sent her to buy him water from the provision shop right in front of the victim's house. Victim then brought the water and he then overhead her mother scolding her for running an errand for him when she was supposed to be helping her with house chores. Accused Person testified further that he intervened to let the mother know that he sent the victim without knowing that she was supposed to being doing chores. It is Accused Person's case that since that day up until his arrest, he never had any form of interaction with the victim nor her mother. Accused Person concluded his testimony by stating that since his arrest and arraignment in this

court, he has maintained his innocence and plead not guilty to the charge of defilement as he has never had any physical interaction with the victim.

Analysis

11. The **Criminal Offences Act, 1960 (Act 29)** in Section 101 provides that '…. *defilement is the natural or unnatural carnal knowledge of any child under sixteen years of age…..whoever naturally or unnaturally carnally knows any child under sixteen years of age, whether with or without his or her consent commits an offense…'* Defilement is therefore any sexual intercourse with a child under the age of 16 years old, with or without the child's consent. It has also been stated that defilement includes any sexual activity which children do not fully comprehend and are thus unable to give informed consent.

Standard and burden of proof of Prosecution

12. There is the need to emphasize that the standard of prove required of the Prosecution is proof beyond reasonable doubt as captured in the case of **G/L/CPL Ekow Russel vs. The Republic** [2016] DLSC 2800, where Akamba JSC stated that the basic principles underlying our criminal justice system are as follows; *'…throughout the trial of an accused person, the Prosecution has the burden to prove each ingredient of the charge against the accused, beyond reasonable doubt. Failure to meet this high burden in relation to one of the ingredients of a charge must resonate in an acquittal on that particular charge. The Prosecution must produce the evidence to meet the requirements of S. 11 (2) of the Evidence Act, NRCD 323….*

13. In the case of **The Republic vs Yeboah** [1968] GLR 248, Baidoo J (as he then was) held that for Prosecution to succeed in proving its case on the offence of

defilement, it must establish beyond reasonable doubt, each of the following three essential elements;

(a) That the victim is under the age of 16 years;

(b) Someone had sexual intercourse with her; and

(c) That person is the accused.

The Court shall examine each of the essential elements as stated above to ascertain whether or not the Prosecution was able to prove their case beyond reasonable doubt.

14. The **first element is the determination of the age of the victim** and to discharge the burden of establishing the age of the victim, Prosecution as part of their disclosures furnished the Court Exhibit 'C' which is the Biodata page of the Weighing Card of the Victim. The said Exhibit gives the date of birth of the child as 8/6/2009 which implies that at the time of the alleged offence, the victim was Fourteen (14) years old. Additionally, Exhibit 'D' which is the Medical Form also gives the age as Fourteen (14) years old as well as the fact that the victim, whilst testifying orally gave her age as Fourteen (14) years old. Counsel for the Accused Person, in his Written Address, did not challenge the age of the victim during cross-examination. The conclusion therefore is that the victim is indeed Fourteen (14) years old and the Prosecution has been able to prove beyond reasonable doubt that the victim at the time of the alleged offence was Fourteen (14) years old and therefore less than Sixteen (16) years old.

15. **The second essential element of the offence is to prove that someone had sexual intercourse with the victim**. It is the Prosecution's case that the victim had been defiled and as such must establish that someone had sexual intercourse with the victim. To discharge this burden, the Prosecution's Exhibit 'D', which is the

Medical Form signed by Dr. Anongura stated among others as follows; *'… on examination of the genital, vaginal introitus was open, hymen was broken with presence of hymenal remnants. Introitus admitted 2 examining fingers…'* During cross-examination of the Medical Doctor by Counsel for the Accused Person, the following transpired;

Q: So even though, the hymen of the victim looks broken, there is nothing in Exhibit 'D', the Medical Report that suggest the hymen was broken through sex, is that correct?

A: No, there is evidence in the Report which could suggest that the hymen was broken through sex.

Q: Would you mind telling this Court what exactly the Exhibit 'D' shows that the hymen was broken through sex?

A: The fact that the vaginal introituses [opening] could admit Two [2] examining fingers. The second one would be the presence of hymenal remnants.

16. On discharging the element that someone had sexual intercourse with the victim, the Court takes into consideration the Medical Doctor's testimony. Again, the answers given by the doctor during cross-examination by Counsel for the Accused Person, established that the victim's hymen was broken. The Medical Officer was subjected to further cross-examination and the following was captured by the records;

Q: You also stated that a scanty whitish discharge was present, did you conduct test to find out what it was?

A: Yes, there was.

Q: Would you mind to tell the Court what it was?

A: Three tests were performed, but for the discharge the High Vaginal Swap was performed.

17. The cross-examination captured above, suggests that someone indeed had sexual intercourse with the victim. The Medical Doctor's testimony qualifies as an expert opinion and satisfies the provisions of the Evidence Act, specifically Sections 112 and 113 of NRCD 323. Additionally, Exhibits 'D' is the Medical Form issued by the Prosecution to the victim and in the absence of any contrary evidence, the conclusion is that there was carnal knowledge of the victim as the evidence adduced by the Prosecution shows someone had sexual intercourse with the victim.

18. **The third essential element in establishing the offence of defilement is that the Prosecution must show that it was the Accused Person who had sexual intercourse with the victim**. The Particulars of the Offence were as follows; *'…Francis Amissah, Aged 39 years, Taxi Driver; for that you in the month of October, 2023 at Mataheko in the Greater Accra Circuit and within the jurisdiction of this Court, did unlawfully carnally know one Michelle Kokor Narh, a female aged 14 years…'.* To prove its case, the Prosecution therefore, has to establish that the Accused Person had carnal knowledge of the victim unlawfully. In the case of **G/CPL Valentino Gligah and EC/1 Abdulai Aziz Atiso vs. The Republic** [2010] SCGLR 870, the Supreme Court posited as follows: *'… Carnal knowledge is the penetration of a woman's vagina by a man's penis. It does not really matter how deep or however little the penis went into the vagina. So long as there was some penetration beyond what is known*

as brush work, penetration would be deemed to have occurred and carnal knowledge taken to have completed…'

19. The evidence on record shows that someone had sexual intercourse with the victim, but the Prosecution must establish that it was the Accused Person who had sexual intercourse with the victim. As such, there is the need to examine the evidence on record to determine whether the Prosecution was able to discharge this burden. I start with Prosecution Exhibit 'B' which is the statement made by the victim at the Police Station on the 29/10/2023. At page 1 line 7, the victim stated at follows; *'…whenever I close from school and I am playing with my friends in the area. The man calls me, ask me to sit in his red car and takes me to a place in his red car and buys coke for me to drink. He always put some white inside the drink before giving it to me to drink. However, after taking in the drink, my body becomes weak and I sleep off. After waking up, I see myself in a room. There is a sofa chair, a television but no bed and detect that he has had sexual intercourse with me. We have been to the place five times. After the act, he takes me back home, gives me Ghc2.00 and warned me not to tell anybody else he will kill me. He sometimes beat me at the place for me to wake up…'*

20. Similarly, on the 8/11/23, the victim gave her testimony on oath and below are some excerpts;

    Q: What happened between you and the Accused Person?

    A: Whenever I close from school, he calls me sister girl, come and let me send you and he would open his car and ask me to come and sit in it. He takes me to where my school is at the down part of the area. He buys me drink. He then put a white substance in a drink for me to drink; after taking the drink I do not see anything again, so he raped me.

Q: What do mean by he 'raped me', can you explain?

A: [She answers in Twi Language by saying 'w'adi me'] which means he had sex with me.

Q: How many times did this thing happen to you?

A: Five [5] times.

Q: When this happened to you, did you inform your parents?

A: No.

21. The unsworn statement of the victim as well as her testimony on oath as extracted above amounts to direct evidence of the incidence and is to a large extent real evidence. The learned Justice Brobbey in his book, **Essentials of the Ghana Law of Evidence**, 2014 at page 13 states that *'…real evidence is evidence whose characteristics are directly material to the issue to be determined. They are usually involved the production or making of the evidence in issue… a witness should be able to first identify the object and describe its essential features in order to show that the object is indeed what it purports to be…'*

22. The Court considers the fact that the victim is a child and the question on the mind of the Court is whether the victim was competent and qualified enough to testify. Sections 58 of NRCD 323 provides that *'…except as otherwise provided…every person is competent to be a witness and no person is disqualified from testifying to any matter…'* Additionally, Section 59 of NRCD 323 also provides that *'… person is not competent to be a witness, if he is (a) incapable of expressing himself so as to be understood, either directly or through interpretation by one who can understand him; (b) incapable of understanding the duty of a witness to tell the truth…'* The import of the above is that

the evidence and/or testimony of a witness, irrespective of being a child or an adult, depends on whether the witness is competent.

23. Justice Brobbey, supra, stated the following at page 146 *'…under what circumstances will a witness be said to be competent? The US Federal Rules of Court sums up what will make a witness competent in the following terms: For a witness to be competent, he must (a) with understanding, take an oath or its substitute; (b) have personal knowledge of what he testifies on, i.e., he must have perceived what he testifies on with his own senses that is relevant to the case; (c) remember what he perceived and (d) be able to communicate what he perceived…'* The learned Justice Brobbey, supra at page 148 states further that *'…section 59 however provides two limitations on the person who can be a witness in Ghana. The first is that the person who is called as a witness should be able to remember and narrate what he saw or perceived. He should be able to do that by himself or through an interpreter. The second is that the person should be able to understand the essence of taking an oath or affirmation before testifying... Section 59(2) recognizes that if a child can narrate what he saw to the understanding of the Court and he also appreciates the essence of taking an oath, he may still be qualified even though by definition he is below eighteen years as stated in the Children's Act, 1998, (Act 560)…'*

24. In spite of the above, Courts have been admonished to be cautious as far as the testimonies of children and young persons are concerned. There is a school of thought that opines that children are very innocent in telling what they saw and what they did. Similarly, children are easily instructed, making them puppets in the hands of the elderly who can then utilize them to give false testimony in Court. The child may testify about things which he has not seen due to fear and temptations. They can be easily influenced and can be used for wrongful purposes. The proposition therefore is that one cannot punish the Accused Person with the

evidence provided by a child witness. In an Indian case of **Nirmal Kumar v. State of Uttar Pradesh** (1992) AIR SC 1131, Supreme Court of India held that *'… the Courts should consider a child witness and they have to examine and look for some kind of corroboration instead of ignoring the child witness. Hence, evidence provided by a child cannot be ignored and it has to be carefully examined. It cannot be dismissed as the reason for a child's soft age of getting tutored...'*

25. In the case of the **Republic vs Yeboah,** supra, the Court made reference to the case of **R vs. Campell** [1956] 2 ALL ER 272, CCA where it was held that the evidence of a young person must as a rule of prudence be well corroborated before being acted upon by the Court. The learned Justice Baidoo qualified the rule of prudence and held inter alia that *'… the evidence of a sexual victim need no corroboration but it is prudent to look for corroboration from some extraneous evidence which can confirm the evidence of the victim in some material particular implicating the accused…'* In other words, there must be other pieces of evidence on record that will link the Accused Person to the defilement of the victim as well as corroborate the testimony of the victim. **Corroboration** simply refers to the process of confirming or supporting evidence through additional sources or means.

26. According to Justice Pwamang in the case of **Eric Asante vs The Republic,** Civil Appeal No.J3/7/2013 /[2017]DLSC2511*'…corroboration is evidence which supports the testimony of a witness by confirming that the witness is telling the truth in some material particular in his testimony thereby giving credibility to his story. Corroborative evidence must be independent of and from a source other than the witness whose testimony is sought to be corroborated…'* **Section 7 (3) of NRCD 323** however provides as follows: *"Unless otherwise provided by this or any other enactment, corroboration of admitted evidence is not necessary to sustain any finding of fact or any verdict."* In the **Eric Asante**

Case, supra, the Supreme Court held thus; *'… in the absence of corroboration, if a court is convinced beyond reasonable doubt by the testimony of a sole witness, it may convict…'*

27. To this end, Prosecution's Exhibit 'D' which is the Medical Form amounts to some form of corroboration of the fact that the victim was defiled. It is trite that in defilement cases, the medical evidence acts like direct evidence, as it gives the proof of the incident in the nature of tear or rupture or redness of hymen or injuries to genitals and other parts of the body. I am however guided by the decision in the case of **Banousin vs the Republic** [2015] DLSC3046 where the Court held that *'…in accepting the evidence of the medical officer as expert evidence, we have been mindful of the caution by the Supreme Court in the case of **Sasu v White Cross Insurance Co. Ltd**. [1960] GLR 4, at pages 5 and 6 where the court stated thus: "expert evidence is to be received with reserve, and does not absolve a Judge from forming his own opinion on the evidence as a whole"…'*

28. Counsel for the Accused Person submitted that nowhere in the medical report can the accused be linked to having sex with the victim. He added that all the medical test meant to trace any sexual intercourse came out unremarkable (negative). To Counsel, the fact that the hymen was broken is not conclusive that the Accused Person had any sexual knowledge of the victim as the medical doctor confirmed that other means can tear the hymen. In an Indian case of **State of Tamil Nadu vs. Raju @ Nehru** (2006) 10 SCC 534, (where the sexual offence was rape which is similar to defilement based on the age of the victim) the Court ruled that *'…rape is a crime and not a medical condition. Rape is a legal term and not a diagnosis to be made by the medical officer treating the victim. The only statement that can be made by the*

medical officer is that there is evidence of recent sexual activity. ***<u>Whether rape has occurred or not is a legal conclusion, not a medical one</u>****." That is the reason why, even the opinion of the doctor that there was no evidence of sexual intercourse or rape is at times held to be not sufficient to disbelieve the accusation of the rape by victim…'*

29. The above notwithstanding, I have done a careful scrutiny of the medical report marked as Exhibit 'D' and at page 2 line 12, the report indicated that *'… there was no history of bruising, vaginal discharge or lower abdominal pain or bleeding per vaginum…'* The medical report further indicated at page 2 line 18 that *'… no signs of bruising were noted…'* but added that '… *the hymen was broken, with presence of hymenal remnants…'* at line 20 of page 2. Exhibit 'D' however failed to state conclusively that there was defilement, penetration and ejaculation. Yet, when Counsel questioned the Medical Doctor on what exactly in Exhibit 'D' shows that the hymen was broken through sex, the doctor's answer was as follows; '***…the fact that the vaginal introituses [opening] could admit Two [2] examining fingers. The second one would be the presence of hymenal remnants…'***

30. Although the report indicates that there was no bruising or bleeding of the vagina but the Court is of the opinion that the absence of such bruises and bleeding presupposes that the medical examination was done days after the alleged defilement. The evidence on record shows that the victim had left her home to stay with her Aunty sometime in October 2023. The victim's Aunty who is PW2 on record, testified that whilst the victim was with her, she observed that the victim was unwell and when questioned, the victim narrated her sexual encounter. This presupposes that the defilement happened hours or days before the PW2's observation. Indeed, at page 3 of Exhibit 'D', the date of the alleged defilement was

given as 26/10/2023 and the date of the examination was 30/10/23. The report further indicated that in between the time of the said defilement and the medical examination, the victim had bathed, brushed her teeth, changed clothes, urinated, defecated and drank water.

31. Upon consideration of the above, it presupposes that that absence of bruises, bleeding, reddening of the vagina and at the same time the absence of the hymen implies that the defilement of the victim had occurred several times before the last defilement date which was given as 26/10/23. To my mind, that would be the only reasonable and logical explanation absence of bruises and at the same time the vaginal opening, hymen broken as well as the presence of hymenal remnants as stated in Exhibit 'D'. This further supports the victim's testimony that the defilement happened Five (5) times, irrespective of whether it was Five (5) times in a day or Five (5) consecutive times. The doctor however explained further during cross-examination as follows;

    Q: Per Exhibit 'D', you did indicate the presence of hymenal remnants, is that correct?

    A: Yes.

    Q: From Medical practice, will there be hymenal remnants when sex is had over a one year period?

    A: It will depend on the frequency over the one year period.

    Q: If the sex is had five times over the one year period, you are likely to see remnants?

    A: Yes.

32. From the foregoing, the onus lies on the Court to determine whether it was the Accused Person who defiled the victim. In doing this, the Court must examine the testimony of the victim to determine if her testimony is probable as well as the defence of the Accused Person to determine whether he has been able to cast doubt in the case of the Prosecution. Victim's statement at the Police Station on the 29/10/2023 and marked as Exhibit 'B' had the following at page 1 line 6 as follows; *'… there is a man in our area which name I don't know but I can identify him. Whenever I close from school and I am playing with my friends in the area. The man calls me, ask me to sit in his red car and takes me to a place and buy coke for me to drink. He always put some white inside the drink before giving it to me to drink. However, after taking in the drink, my body becomes weak and I sleep off. After waking up, I see myself in a room. There is a sofa chair, a television but no bed and detect that he has had sexual intercourse with me…'* The statement of the victim, the Court observes, although an unsworn statement, is a clear narration of the incident wherein she identifies the perpetrator of the act, events leading to the act, the scene of the act as well as the description of items at the crime scene.

33. On the 8/11/23, which was the same day the plea of the Accused Person was taken, the Court made the victim to testify on oath and same was preserved. During her testimony, the Court observed that the testimony of the victim was not different from her unsworn statement made at the Police Station. The victim did not mince words and identified the Accused Person as the perpetrator of the defilement and gave a clear narration of the events of the defilement. Below are some excepts of her Evidence in Chief;

    Q: Do you know the gentleman standing in the dock.

    A: Yes.

Q *Where do you know him?*

A: *I call him uncle.*

Q: *So do you live in the same house or the same area?*

A: *I live in the same area with him.*

Q: *What happened between you and the Accused Person?*

A: *Whenever I close from school, he calls me sister girl, come and let me send you and he would open his car and ask me to come and sit in it. He takes me to where my school is at the down part of the area. He buys me drink. He then put a white substance in a drink for me to drink; after taking the drink I do not see anything again, so he raped me.*

34. With respect to the identity of the perpetrator, Counsel for the Accused Person submitted that in every criminal trial, it is not only necessary for the Prosecution to prove the commission of the crime, but also to lead evidence to identify the accused as the person who committed it. Counsel submitted further that for an Accused Person to be charged and pronounced guilty of an offense, it should be first established by evidence that indeed the person being charged is indeed the person who committed the crime and no other person and same must be proven beyond reasonable doubt. I appreciate the submissions of Counsel for the Accused Person but the victim herself did not mince words in identifying the Accused Person and further described him as the man with the red car, a description the Accused Person never denied.

35. In this particular case, the victim has been consistent with her narration of the event, had a clear recollection of the events and was able to identify the perpetrator

to the satisfaction of the Court to the extent that there are no compelling reasons to seek for corroboration of her statement. It is trite that sexual offences, by their nature, often take place in secrecy or in a private environment, and often done to the exclusion of all others. So that apart from the testimony of the victim, it is almost always extremely difficult to find a corroborating evidence of eye witness. However, in the interest of justice, there is the need for the Court still satisfy itself that the Accused Person indeed defiled the victim by examining the totality of the evidence on record.

36. PW3 who is the Investigator herein, was subjected to cross-examination by Counsel for the Accused Person. The Investigator testified that the victim identified the Accused Person as the one who committed the offence. The following are some excerpts;

> *Q: Did you carry out any identification parade for the victim to identify the actual perpetuator of the alleged act?*
>
> *A: No, but she described him.*
>
> *Q: And her description was the uncle who uses the red car, is that correct?*
>
> *A: Yes my Lady*
>
> *Q: Did the investigation reveal that there are 2 men one by name Kwasi Acquah who also uses the same Nissan Matiz?*
>
> *A: No, because during the arrest, it was the victim who pointed out the Accused Person as the one.*

37. From the foregoing, I am of the opinion, respectively that the identification of the Accused Person as the person who committed a crime is very vital to the case of

the Prosecution. *'Identification' is the proof in a legal proceeding that a person, document, or other thing is that which is alleged to be. Identification is the evidence of identity. According to Phipson in his book,* ***Phipson on Evidence*** *(Sweet & Maxwell, Thomson Reuters, 17th Ed. 2015) '… it is often important to establish the identity of a person who a witness testifies that he saw on a relevant occasion…'* As such, the victim's identification of the Accused Person and no other person, provides a direct evidence linking the Accused Person to the crime and this is essential in establishing the Accused Person's involvement in the crime. Furthermore, the victim, being able to identify the Accused Person, during the point of arrest and in Court, without mincing words, to a large extent shows that the victim has a clear recollection of the events as well as the perpetrator.

38. Flowing from above, I shall now analyze and examine the defence of the Accused Person to determine whether he has been able to cast doubt in the Prosecution's case. In the case of **Lutterdot vs. C.O.P** (1963) 2 GLR 430, the Court held that; '…*in all criminal cases where the determination of a case depends upon facts and the court forms the opinion that a prima facie case has been made, the court should proceed to examine the case for the defence in three stages:*
    a) *if the explanation of the defence is acceptable, then the accused should be acquitted;*
    b) *if the explanation is not acceptable, but is reasonably probable, the accused should be acquitted;*
    c) *if quite apart from the defence's explanation, the court is satisfied on a consideration of the whole evidence that the accused is guilty, it must convict."*

39. In examining the defence of the Accused Person, I start with his confession statements marked as Exhibits 'E' and 'F'. In Exhibit 'E' which is the Caution statement of the Accused Person and dated 1/11/23, he stated at page 2 line 8 as

follows; *'…I stay opposite their house. i was free with victim and her mother until one day I sent victim and the way her mother behaved was bad and stopped talking to them for 2 years now. Since then, I have not done anything, I am innocent…'* The Accused Person repeated the same narrations in Exhibit 'F' which is the Charge Statement of the Accused Person and dated 2/11/25. However, the in the Witness Statement filed on behalf of the Accused Person on the 21/5/25, the Accused Person introduced new facts when he testified that he once proposed to the victim's mother which she turned down. Subsequently, the victim's mother started going out with an old taxi driver and he mocked her of her choice of men. This infuriated the victim's mother and for about Two (2) years, each does not speak to the other.

40. The Accused Person testified further that he sent the victim to buy him water and he heard the victim's mother scolding the victim, but he intervened by informing the victim's mother that he was the one who sent the victim. Since then he has never had any form of interaction with neither the victim nor her mother. In trying to understand the testimony of the Accused Person, the question on the mind of the Court is whether the Accused Person is suggesting that his proposal to the victim's mother is the reason he stands accused? Again, is it the Accused Person's case that because he sent the victim on an errand to the annoyance of the victim is why he stands accused? Be that as it may, it must be emphasized that the instant case concerns the victim and not the victim's mother as the Court is not concerned about the relationship between the victim's mother and the Accused Person but rather the defilement of the victim.

41. Prosecution however subjected the Accused Person to cross-examination and the following are some excerpts;

Q: Do you stand by your claim per your Witness Statement in paragraphs '5' and '6'?

A: Yes.

Q: I am putting it to you that your stand by paragraphs '5' and '6' is a fabricated idea?

A: What I have written is the truth.

Q: Are you aware that the mother of the Victim has a husband?

A: I do not know. When I went to propose to her, she was living alone and indicated that she is divorced.

Q: I am putting it to you that the Victim's mother is a married woman and lives with her husband.

A: It is not true.

42. On the identification of the Accused Person as the perpetrator of the act, the Prosecution again subjected the Accused Person to cross-examination and the following was captured on record;

Q: Can you explain why the Victim will accuse you of defilement and not any other person in the vicinity?

A: As for that I will not agree, I am not the one.

Q: Did you ever make any advance or proposition to the Victim?

A: I have never proposed to her.

Q: Have you ever been accused of any similar offence(s) before?

A: No, my Lady.

Q: I am once again putting it to you that it is impossible for the Victim to accuse you of the alleged defilement, if you are not the one?

A: I am not the one, I do not know anything about it.

Q: In the area you live with the Victim is a populated area, is it correct?

A: Yes, my Lady.

43. I must admit that the evidence of the Prosecution was to some extent circumstantial. According to **S. A. Brobbey**, supra at page 253, *'…circumstantial evidence is not proof of the fact itself. It is the pieces or incidents of facts, considered or put together, which provide the basis for drawing conclusion, inference or deduction of the existence or non-existence of a fact. In the nature of things, many crimes are hardly committed in the full glare of the public. Circumstantial evidence is utilized where direct evidence is not available or where direct evidence is not easy to obtain, a typical instance being evidence relating to sexual intercourse such as rape or defilement of females…'* In **Gligah and Atiso vs The Republic**, supra, the Supreme Court described circumstantial evidence as *'…pieces of evidence which if put together made a very strong case against the accused person. It was like a series of small threads and which when put together, made a very strong rope. The same with circumstantial evidence. It was generally accepted that when direct evidence was unavailable, but there were bits and pieces of circumstantial evidence available, and when those were put together, they would make stronger, corroborative and more convincing evidence than direct evidence…'*.

44. In this instant case, the evidence adduced by Prosecution is to the effect that the guardian of the victim observed something unusual about the victim on the 27/10/13. Victim was questioned and she narrated her sexual ordeal. Victim described the perpetrator to the Aunty resulting in the arrest of the Accused Person. Victim informed the Court that Accused Person picks her up in his red car, drives somewhere close to her school where he puts 'something' resulting in her inability to recollect what exactly happens although she knows the Accused Person had intercourse with her because he always beats her to wake up and then takes her home, offering her Ghc2.00 and warning her not to inform anyone.

45. The Medical Report marked as Exhibit 'D', confirms that the victim has been defiled and describes the victim's vaginal opening to be able to contain Two (2) fingers. The Medical Report further suggests that the victim was defiled by someone although the medical examination is unable to determine who defiled the victim. The victim testified on oath, identifies and points to the Accused Person, and no other person as the one who defiled her. This implies that the identity of the Accused Person is well known to the victim and his identity could not have been mistaken. The question on the mind of the Court, humbly and respectfully, is why should the court reject the testimony of the victim, whom the Court regards as a competent and qualified witness, and testifies on oath that she was defiled, gives a description of the perpetrator, identifies the Accused Person as the perpetrator and her narration is corroborated by a Medical Report that indicates that her hymen is broken as against an Accused Person's defence that woefully fails to create doubt in the testimony of the victim?

46. A similar question was raised as an issue in the case of **Republic vs Asafu-Adjaye (No 2)** [1968] GLR 567 when the Court of Appeal had to determine whether a

criminal issue is determinable on oath of one person against another. The Court held per holding 4 as follows; *'…there was no authority that a tribunal of fact could not decide an issue on the evidence of one person or on the oath of one person against the other. When the oral evidence before the Court is consistent of the oath of one witness against that of another, it was essential to take into consideration other circumstances or matters that might have been brought to the knowledge of the Court. The law did not preclude a judicial decision based on the evidence of a single witness if the evidence was found to be true, the old maxim being* ***testes ponderantur, non merantur…'***

47. The Latin maxim referenced to by the Court of Appeal as stated above *"testes ponderantur, non numerantur"* means *"testimonies are to be weighed, not numbered."* Authorities posit that this legal principle emphasizes that in evaluating evidence, the quality and credibility of witness testimonies are more important than the sheer number of witnesses. When conflicts arise in evidence, the focus should be on assessing the trustworthiness of each witness rather than counting how many support one side or the other. Thus, credible testimonies from a few reliable witnesses can outweigh numerous testimonies from less trustworthy sources. In this instant case, the victim herein was a qualified and competent witness, capable of coherent expression, understood the essence of taking an oath, was able to narrate the circumstances surrounding her defilement and was not hesitant in identifying the Accused Person as the perpetrator.

48. Counsel for the Accused Person in his Written Address submitted that the Prosecution failed to prove the establishment of the said ingredient of defilement. Counsel relied on the case of **The State vs Brobbey and Nipah** and quoted as follows; *'… in a case where the evidence if purely circumstantial ad establishes nothing*

more than suspicion, the Judge must draw attention to the necessity of some pierce of evidence tha is more than mere suspicion and which would lead to one conclusion and one conclusion only, that is, to the guilt of the prisoner. One cannot put a multiple of suspicions tothergher and make proof of it..' Whilst I agree with the submissions of Counsel for the Accused Person, I am also of the opinion, respectfully, that no Two (2) cases are the same. Each case must be determined in isolation as the facts and circumstances of one case differs from another.

49. I must state that I have had the opportunity to see and hear the victim, I have observed the victim as well as her demeanor whilst in Court and I do not doubt her trustworthiness. I am guided by the decision of Ollenu JA (as he then was) in the case of **Kyiafi vs Wono** [1967] GLR 463 when he stated thus; *'…the question of impressiveness or convincingness are products of credibility and veracity; a Court becomes convinced or unconvinced, impressed or unimpressed with oral evidence according to the opinion it forms of the veracity of witnesses…'* In the circumstances, I find that the victim understood the duty of being truthful to the Court and was also capable of coherent expression that was understood directly by the Court. In an Indian case of **State of Punjab vs. Gurmeet Singh** (1996) 2 SCC 384, the Court held that *'…the testimony of the victim in such cases is vital and unless there are compelling reasons which necessitate looking for corroboration of her statement, the courts should find no difficulty to act on the testimony of a victim of sexual assault alone to convict an accused where her testimony inspires confidence and is found to be reliable. Seeking corroboration of her statement before relying upon the same, as a rule, in such cases, amounts to adding insult to injury. Why should the evidence of a girl or a woman who complains of rape or sexual molestation be viewed with doubt, disbelief or suspicion...?'*

50. With respect to the defence of the Accused Person, Counsel for the Accused Person submitted that the Accused Person is not required to prove anything if he can merely raise a reasonable doubt as to his guilt, he must be acquitted. The Accused Person however, makes a general denial in his defence and suggests that he stands accused because he differed with the victim's mother. The Accused Person did not call witnesses to testify on his behalf, neither did he adduce any evidence that will exonerate and/or extricate him from the offence levelled against him. In the case of **Asante vs The Republic**, supra, the Court held that; *'… though the accused person may testify and call witnesses to explain his side of the case where at the close of the case of the prosecution a prima facie case is made against him, he is generally not required by the law to prove anything. He is only to raise a reasonable doubt in the mind of the court as to the commission of the offence and his complicity in it except where he relies on a statutory or special defence…'* The Supreme Court made reference to Sections 11(2) 13(1), 15(1) of the **Evidence Act,** 1975 (NRCD 323) and the case of **COP v Antwi** [1961] GLR 408.

51. From the foregoing, I must state again that I had the opportunity to see and hear the Accused Person, I observed him and observed his demeanor when he opened his defence and was subjected to cross-examination. I find that the Accused Person's defence and/or explanation was neither reasonably probable nor did it create a reasonable doubt. In **Asante vs The Republic**, supra, the Court made reference to the case of **Oteng vs The State** [1966] GLR 352 and held thus; *'… beyond reasonable doubt does not mean beyond a shadow of doubt. The guilt of an accused person is sufficiently proved if the tribunal of fact is convinced that he committed the offence though there remains a lingering possibility that he is not guilty…'* I must state that in arriving at my conclusion, I observed that the Prosecution may not have led direct evidence but there is enough circumstantial evidence on record. I am not

oblivious to the fact that the Prosecution must prove its case beyond reasonable doubt, but the facts and circumstance of the each case differs and cases involving children must be examine through different lenses and/or spectacles. I have also juxtaposed and weighed the need to balance between protecting such victims and ensuring that justice sways in their favour as well protecting Accused Persons against the State/Republic especially when the Article 19 (2) (c) provides that the Accused Person is presumed innocent until he pleads guilty or is proven guilty.

52. From the foregoing and based on the totality of the evidence before this Court and especially the testimony and demeanor of both the victim and the Accused Person, I accept entirely the testimony of the victim and find that the Prosecution has discharged the burden of proving its case beyond reasonable doubt. I reject the Accused Person's defence as not reasonably probable. In the circumstances, I find the Accused Person guilty as charged and hereby convict him of the offence of Defilement contrary to Section 101(2) of the Criminal Offences Act 1960 (Act 29), and shall be sentenced accordingly.

<u>Pre-Sentence Hearing:</u>

53. The accused only makes a general denial in his defence. He claims that he
54. differed with his aunt that is why she brought up the story, however the story did not start with his aunt,
55. but with the two girls.

BENCH: Is the Accused Person known to the law?

PROSECUTION: No, My Lady.

BENCH: Is the Accused Person a first time Offender?

PROSECUTION: Yes, My Lady.

BENCH: Are you married?

ACCUSED PERSON: No.

BENCH: Do you have children?

ACCUSED PERSON: Yes.

BENCH: How many children?

ACCUSED PERSON: Two (2)

BENCH: How old are the children?

ACCUSED PERSON: One is Nineteen (19) years old and the other is Fifteen (15) years old.

BENCH: Where is the children's mother as we speak?

ACCUSED PERSON: She stays at Asamankese.

BENCH: Where do the children stay?

ACCUSED PERSON: One is with the maternal grandmother and the other the mother.

BENCH: Who is responsible for the maintenance of the children?

ACCUSED PERSON: I do.

BENCH: What work do you do?

ACCUSED PERSON: I am a taxi driver.

Mitigation:

COUNSEL FOR THE ACCUSED PERSON: My Lady, I will like to say that Accused Person in the bid to proof his innocence in this matter has made himself available at every Court appearance. He is also first time offender and unknown to this Court. I humbly pray that this Court in sentencing will be gracious enough to give him a less sentence. He is a young vibrant man eager to build a future for himself and his family and humbly would not want that future to be thrown away. My Lady, I want to add that Accused Person is the bread winner of his family taking care of his children, his wife and his aged mother from the earnings he make from driving this taxi. I humbly urge that this Honourable Court to take all these into consideration in sentencing the Accused Person.

Sentencing:

BY COURT: In sentencing the Accused Person, I consider the following as mitigating factors:

a. The Accused Person is a first time offender.
b. The fact that he has dependents.
c. Plea of mitigation by counsel for the Accused Person.

On aggravating factors, I consider the following:

a. The Accused Person premeditated the offence.
b. The defilement of the victim took a long duration of time.

c. The huge age difference between the Accused Person aged Thirty-Nine (39) years and the victim being Fourteen (14) years old.
d. The fact that the Accused Person administered some substance in the drink offered to the victim.
e. The vulnerability of the victim being a school going girl.
f. The prevalence of such offence within the jurisdiction of the Court and the need to punish the Accused Person to serve as a deterrent to others.

In balancing the mitigating and aggravating factors therefore, the Accused Person is sentenced as follows; on the count of **Defilement contrary to Section 101(2) of the Criminal Offences Act 1960 (Act 29),** the Accused Person is sentenced to Twelve (12) years imprisonment in hard labor.

SGD.

H/H HALIMAH EL-ALAWA ABDUL-BAASIT

CIRCUIT COURT JUDGE